

MATTER OF SILVEIRA

21PR8357

DEFENDANT’S MOTION TO BIFURCATE TRIAL

This matter includes four consolidated probate petitions and one related civil complaint and a convoluted factual and procedural history.

Now before the Court is a motion to bifurcate brought by Objectors Francille Elaine Peters, Individually, as Beneficiary, as Executor, and as Co-Trustee; and David J. Silveira, Jr., Individually and as Personal Representative (hereinafter “Objectors.”)

I. Background

The facts of the multiple interrelated cases have been set forth in numerous pleadings and court rulings. Accordingly, the Court will only give a brief recitation of the facts relevant to the motion to bifurcate.

Carolyn Silveira (“Carolyn”)⁴ and David J. Silveira Sr. (“David, Sr.”) were a married couple with five children: Audrey Petricevich (“Audrey”), Manuel Silveira (“Manuel”), Francille Elaine Peters (“Francille”), David Silveira Jr. (“David Jr. ”) and “Dominick Silveira (“Dominick”).

In 1969, David Sr. and Carolyn purchased an 80 acre parcel of real property (“80 Acre Property”.) In 1979, David Sr. and Carolyn purchased an adjoining 10 acre parcel (“10 Acre Property”.) Both properties were held by the married couple as “joint tenants.”

In 1987, David Sr. and Carolyn, along with all five children, purchased an adjoining 120 acre parcel with each to hold a 1/6 interest, except David and Carolyn who jointly held a 1/6 interest. (“120 Acre Property.”)

In 2016, Carolyn created the Carolyn L. Silveira Separate Property Revocable Trust (“Carolyn’s Trust”) and purported to transfer her interests in the three properties therein. In January of 2020, David Sr. created his own trust (“David Sr. Trust”) and also

⁴ Due to the common surnames, first names will be used for all parties. No disrespect is intended.

purported to transfer his own interests in the three properties to that trust. At some point Dominick's 1/6 interest in the 120 Acre Property was transferred to Manuel.

Carolyn filed for Divorce from David Sr. on February 10, 2020. Unfortunately, Carolyn passed away before the divorce proceedings were finalized.

In October of 2020, Francille was appointed Trustee of Carolyn's Trust and began the probate process for Carolyn's estate.

On January 7, 2021, David Sr. filed a Petition to (1) Recovery of Trust Property Pursuant to Probate Code § 850, (2) Conversion, (3) Quiet Title, and (4) Partition Action with Case No. 21PR8357 ("Lead Case.")

In August 2021, David Sr. filed a petition to probate Carolyn's estate (Case No. 21PR8424) as well as a "Spousal Property Partition" (Case No. 21PR8425.) David Sr. passed away in November of 2021 and Audrey then filed a petition to probate David Sr.'s estate (Case No. 21PR8452.) On May 31, 2022, Francille and David Jr. filed a civil action against Audrey as Trustee of David Sr.'s estate for partition of real property and payment of rent (Case No. 22CV46053.)

In September of 2022, Audrey filed a motion to dismiss or in the alternative to consolidate the multitude of similar actions. In that Motion, Audrey argued that consolidation was appropriate because all five cases "relate to and involve the determination of title to real property parcels that David Silveira, Sr. (deceased) and Carolyn Silveira (deceased) owned jointly during marriage." (Motion to Consolidate, p. 2.) No opposition to the Motion was filed. Rather, on October 17, 2022, counsel for Francille and David Jr. (who remains their current counsel) filed a declaration in support of consolidation, noting that:

"Consolidation makes sense in the interest of preserving judicial resources... This is because should Manny Silveira's claim to title fail, Plaintiff's would be required to file the very same complaint that is presently before the court to have the property sold and the proceeds distributed. Whereas, with the matters consolidated, should Manny Silveira's claim to fail, the remedy would be sale of the property, reimburse Manny Silveira for costs incurred to the benefit of the property (if any), and then divide the net proceeds."

(Declaration of Eurik O'Bryant, ("O'Bryant Decl.") dated 10/17/2022.)

II. Legal Standard and Discussion

Under Code Civ. Proc. section 1048(b), the Court, “in furtherance of convenience or to avoid prejudice, or when separate trials will be conducive to expedition and economy, may order a separate trial of any cause of action . . . or of any separate issue or of any number of causes of action or issues.”

Trial courts have broad discretion to determine whether to bifurcate in the interests of judicial economy. (*Grappo v. Coventry Fin. Corp.* (1991) 235 Cal.App.3d 496, 504.) The objective of bifurcation “is avoidance of the waste of time and money caused by the unnecessary trial of damage questions in cases where the liability issue is resolved against the plaintiff.” (*Trickey v. Superior Court of Sacramento County* (1967) 252 Cal.App.2d.650, 653.)

The moving party bears the burden of showing that bifurcation is necessary and appropriate. (*Spectra-Physics Lasers, Inc. v. Uniphase Corp.* (N.D. Cal. 1992) 144 F.R.D. 99, 101; see also *Altangerel v. Martinez*, 2021 Cal.Super.LEXIS 77925, *3.)

III. DISCUSSION

Objectors request that the Court bifurcate the cases because Manuel’s Petition presents a threshold issue that must be resolved before the remaining issues can be resolved and because David Sr.’s Petition is sufficiently distinct to warrant a separate trial.

As previously acknowledged by the parties herein, the underlying issues in the five cases overlap substantially. The same facts, contentions, potential witnesses and evidence, and arguments are nearly identical in all the cases. These commonalities involve complex matters. Objectors have simply not established that judicial economy will be served by bifurcation, nor that a joint trial will unduly prejudice Objectors.

The Court finds that bifurcation of the matters would not promote the convenience of witnesses, the ends of justice, or the economy and efficiency of handling the trial. Accordingly, the motion is **DENIED**.

The clerk shall provide notice of this ruling to the parties forthwith. Opposing Parties to prepare a formal Order in compliance with Rule of Court 3.1312 in conformity with this Ruling.